

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed Furniture Works
of Existing and Annex Buildings**

Contract Agreement

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

SHEPHEARD HOTEL RENOVATION CONTRACT AGREEMENT

This Contract Agreement is executed on.....September 2025 (hereinafter referred to as the **"Signing Date"**).

By and Between

Al Sharif for Hotels and Tourism; an Egyptian joint stock company - Commercial Register no. 151892, issued from Cairo Investment Office, having its address at 2 Simon Bolivar Square, 6th floor, Cairo, Arab Republic of Egypt, company duly established and incorporated under the laws of Egypt. Herein represented by Mr. Nawaf Bin Faiz Al-Sharif in his capacity as Vice Chairman and Managing Director (Hereinafter referred to as the **"Employer"** or **"First Party"**)

And

CCC Egypt for Construction (CCC Egypt); Commercial Register no. 182944 issued from Cairo having its address at Land Plot No. 236 – Second District. Fifth Settlement, New Cairo, Cairo, Arab Republic of Egypt, company duly established and incorporated under the laws of Egypt. Herein represented by Mr. Mohamed Tarek in his capacity as Area Managing Director - Africa (Hereinafter referred to as the **"Contractor"** or **"Second Party"**).

Together referred to in this Contract Agreement as the **"Parties"** and individually as **"Party"**

Preamble

Whereas, the Employer desires to execute Package SH-06 B and SH-06 C related to this Contract Agreement for the Architecture, MEP, Finishing and Fixed Furniture Works for the Existing Building and Annex Building of Shephard Hotel Renovation Project (hereinafter referred to as the **"Project"**). Package SH-06 B and SH-06 C are defined in Annex (1) (hereinafter referred to as the **"Works"**);

Whereas, the Contractor acknowledges, declares and warrants that he has the experience, time, team, tools, equipment and efficiency to undertake the Works for the Project according to this Contract;

Whereas, the Contractor has inspected the Existing Building and accepts its current conditions and willing, able and capable perform the Works for the Project in efficient and timely manner, in addition to any required repair, modifications and structure strengthening for all Existing Building floors under additional scope.

Whereas, the Contractor hereby confirms that he has reviewed all permits and approvals listed in Annex (4) and is satisfied with their completeness and adequacy.

Whereas, the Contractor hereby acknowledges that he has reviewed all the Drawings and Specifications (included in Annex (1) and the Nominated Sub-Contractors' responsibilities as listed in Annex (3)). The Contractor represents and warrants that it is satisfied with the aforementioned documents and expressly states that it has no objections to their contents.

Now, therefore, the Parties agree as follows:

- A. The above preamble forms an integral part of this Contract Agreement.
- B. The following documents shall be deemed to form and be read and construed as an integral part of this Contract Agreement. For the purposes of interpretation, and in the event of contradiction or ambiguity the priority of the Documents shall be in accordance with the following sequence:
 - 1. Contract Agreement
 - 2. The Contract Data
 - 3. The Contract Particular Conditions
 - 4. The Contract General Conditions (FIDIC Red Book - First Edition 1999)
 - 5. CCC Basis of Offer within Annex (1)

6. The priced Bills of Quantities within Annex (1)
7. Tender Queries Logs of Package SH-06B REV (14) on 13 June 2024, Package SH-06C REV (9) on 9 August 2024 and CCC additional queries dated May 2025
8. The Drawings within Annex (1)
9. The Specification within Annex (1)
10. Escalation Formula for the Adjustment in USD rate within Annex (2)
11. The Nominated Sub-Contractors' responsibilities as listed in Annex (3).
12. Annex (4) Permits & Approvals
13. Annex (5) Site Facilities List

(Hereinafter referred to collectively as the "**Contract**").

- C. The Contract Particular Conditions and the Contract General Conditions (FIDIC Red Book - First Edition 1999) shall be referred to collectively as the "**Conditions of Contract**".
- D. Capitalized words or expressions shall have the same meanings and definitions as are respectively assigned to them in the Contract Agreement and in the Conditions of Contract.
- E. The Contract constitutes the entire agreement between both Parties.
- F. The Contractor shall be fully and wholly responsible for the full, complete and timely performance of the Works in accordance with the Contract, and for the proper construction, installation and completion of the Works, including the Works shown on and in conformity with the Contract, free of material and workmanship defects, and of first-class quality workmanship and new material.
- G. The Time for Completion is divided as follows:
 - (1) The Time for Completion of Package SH-06B Works shall be eighteen (18) Months, subject to the handing over of the Annex Building within (12) Months from the Commencement Date (hereinafter referred to as the "**Time for Completion of Package SH-06B**");
 - (2) The Time for Completion of Package SH-06C Works shall be completed four (4) Months from the completion of Package SH-06B, (hereinafter referred to as the "**Time for Completion of Package SH-06C**");
 - (3) Sectional completion time as follows:
 - (2) Mock-up rooms in Existing Building within three (3) months from the Commencement Date
 - All Basements to the 4th Floor in Existing and Annex Buildings within three (3) months from Annex Building handing over
- H. The total Contract Remeasure price shall be divided as follows (hereinafter referred to as the "**Accepted Contract Amount**")
 - **Package SH-06B: EGP 2,592,000,000 (Only Two Billion Five Hundred Ninety-Two Million Egyptian Pounds)**
 - **Package SH-06C: EGP 1,696,000,000 (Only One Billion Six Hundred Ninety-Six Million Egyptian Pounds)**
 - **Nominated Subcontractors for Package SH-06B and SH-06C: a provisional sum amount EGP 1,500,000,000 (Only One Billion Five Hundred Million Egyptian Pounds)**

This amount is the sum of the Accepted Contract Amounts of the Works as shown in Annex (1) to this Contract Agreement. The Employer hereby covenants to pay the Contractor in consideration of the execution, completion and warrantee of the Works the Accepted Contract Amount as it becomes payable under the provisions of the Contract at the time and in the manner prescribed therein.
- I. The Accepted Contract Amount is inclusive of the VAT taxes on the contracting services and all other taxes/duties on the material and plant in addition to all authorities' fees, charges, custom duties, social insurances, and governmental fees.

- J. The Contractor shall submit to the Employer, within 21 days from the Signing Date, an unconditional and irrevocable performance bank guarantee equivalent to 7% of Package SH-06B Amount (hereinafter referred to as the “**Performance Security**”) in a form issued by a bank accepted in writing by the Employer. The Performance Security shall remain valid until the issuance of the Performance Certificate in accordance with Sub-Clause 11.9 of the Conditions of Contract and shall collectively guarantee the due performance of the Contractor’s obligations and warranties to the Employer.

The Contractor shall provide the additional required performance security for the additional packages mentioned in paragraph (G) above, in accordance with the terms of the Contract.

- K. The Contractor recognizes that time is of the essence in completing the Works and the Contractor recognizes that damages shall result from failure to meet the Time for Completion of the Works. In case of any delay from the part of the Contractor in executing the Works, the Employer shall be entitled to a Delay Penalty according to Sub-Clause 8.7 of the Conditions of Contract, regardless the fact whether any damages had resulted from such delay or not, and with no need to follow the procedures provided for in Sub-Clauses 2.5 and 3.5 of the Conditions of Contract and without any further legal procedure. The said Delay Penalty for each week of delay shall be 1% of the Accepted Contract Amount with a limit of ten percent (10%) of the Accepted Contract Amount.

L. Advance Payments:

1. The Employer shall pay to the Contractor, within 7 working days from the date of the Employer’s receipt of the Performance Security, an advance payment equivalent to 15% of Package SH-06B Amount (hereinafter referred to as “**Advance Payment No. 1**”) against the submission by the Contractor of an unconditional and irrevocable bank guarantee of the same amount (hereinafter referred to as “**Advance Payment Guarantee No.1**”) in a form issued by a bank accepted in writing by the Employer.
2. The Employer shall pay to the Contractor after two (2) months from the Commencement Date, an advance payment equivalent to 5% of Package Sh-06B Amount (hereinafter referred to as “**Advance Payment No. 2**”) against the submission by the Contractor of an unconditional and irrevocable bank guarantee of the same amount (hereinafter referred to as “**Advance Payment Guarantee No.2**”) in a form issued by a bank accepted in writing by the Employer.
3. The Advance Payment Guarantee No. 1 and the Advance Payment Guarantee No. 2. shall be referred to as the “**Advance Payment Guarantees**”.
4. The Contractor shall provide the required advance payment guarantees for the additional packages mentioned in paragraph (G) above, in accordance with the terms of the Contract.
5. The Advance Payments and the Advance Payment Guarantees shall not be subject to any adjustment as a result of any changes or amendments to the Accepted Contract Amount at any later date during the execution of the Contract Agreement.
6. The repayment of the Advance Payment Guarantees shall be carried out in accordance with Sub-Clause 14.2 of this Contract Agreement.

In Witness Whereof, the Parties hereto have signed this Contract Agreement on the above-mentioned date (Signing Date).

Signed by

Signed by

for and on behalf of the Employer

for and on behalf of the Contractor

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed furniture Works
for Existing and Annex Building**

Contract Data

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

**SHEPHEARD HOTEL RENOVATION
CONTRACT DATA**

Item	Clause No. of the Conditions of Contract	Data
General	All	- All references to the "Appendix to Tender" throughout the Conditions of Contract shall be construed to refer to this Contract Data. - Any reference to the "Advance Payment" shall to be construed to refer to the Advance Payments.
Employer's name and address	1.1.2.2 & 1.3	Al Sharif for Hotels and Tourism; 2 Simon Bolivar Square, 6 th floor, Cairo, Egypt
Contractor's name and address	1.1.2.5 & 1.3	CCC Egypt for Construction (CCC Egypt); Land Plot No. 236 – Second District. Fifth Settlement, New Cairo, Cairo, Arab Republic of Egypt, Cairo, Arab Republic of Egypt
Engineer's name and address	1.1.2.4 & 1.3	Hexagon Project & Construction Management Consultants 2 Kilani Mohamed Kilani St., Star Capital 2, Nasr City, Cairo, Arab Republic of Egypt
Commencement Date	1.1.3.2	The Commencement Date of the Works shall be the latest of any of the following events: • Handing over of the Existing Building • the Employer's receipt of the Performance Security. • the Contractor's receipt of Advance Payment No.1
Time for Completion	1.1.3.3	(1) The Time for Completion of Package SH-06B Works shall be eighteen (18) Months, subject to the handing over of the Annex Building within (12) Months from the Commencement Date (hereinafter referred to as the "Time for Completion of Package SH-06B"), (2) The Time for Completion of Package SH-06C Works shall be completed four (4) Months from the completion of Package SH-06B, (hereinafter referred to as the "Time for Completion of Package SH-06C"); (3) Sectional completion time as follows: • (2) Mock-up rooms in Existing Building within three (3) months from the Commencement Date • All Basements to the 4th Floor in Existing and Annex Buildings within three (3) months from Annex Building handing over
Defects Notification Period	1.1.3.7	365 days

Governing Law	1.4 & 1.13	Egyptian Law
Language for communications	1.4	English
Time for access to the Site	2.1	Handing Over Schedule: - Existing Building at the Commencement Date - Annex Building (12) Months from the Commencement Date
Nominated Subcontractors	5	Scope of the Nominated Subcontractors is according to Annex (3).
Amount of Performance Security	4.2	7% of Accepted Contract Amount according to paragraph (J) of the Contract Agreement.
Normal working hours	6.5	8 hours
Delay Damages for the Works	8.7 & 14.15 (b)	According to Sub-Clause 8.7
Maximum amount of Delay Damages	8.7	10 % of the Accepted Contract Amount
Advance Payments	14.2	20% of the Accepted Contract Amount according to paragraph (L) of the Contract Agreement.
Start repayment of advance payment	14.2(a)	First Interim Payment according to Sub-Clause 14.7.
Percentage of retention	14.3 (c)	5 % of Accepted Contract Amount: 2.5% to be released seven (7) working days after the issuance of the Taking Over Certificate 2.5% to be released seven (7) working days after the issuance of the Performance Certificate.
Limit of Retention Money	14.3 (c)	No Limit
Plant and Material Intended for the Works	14.5	70% of the rate of the Bill of Quantities
Minimum amount of interim Payment Certificate	14.6	N/A
Currency of Payment	14.15	Egyptian Pound

Signed by

Signed by

for and on behalf of the Employer

for and on behalf of the Contractor

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed Furniture Works
for Existing and Annex Buildings**

Conditions of Contract

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

The Contract General Conditions

The Contract General Conditions shall be the FIDIC Conditions of Contract for Construction for Building and Engineering Works designed by the Employer, First Edition 1999 (Red Book), amended by the Contract Particular Conditions.

The provisions of all Clauses of Contract General Conditions which are not amended in the Contract Particular Conditions shall remain in full force and effect.

The Contractor deemed to be in possession of its own copy of the Contract General Conditions, to be fully aware of, and to have understood the contents thereof.

The Contract General Conditions are published by:

Fédération Internationale Des Ingénieurs-Conseils (FIDIC)

P.O. Box 86

CH-1000 Lausanne 12

Switzerland

Phone: +41 21 654 44 11

Fax: + 41 21 653 54 32

E-mail: www.fidic.org

The Contract Particular Conditions

General:

The Contract Particular Conditions are additional to those in the Contract General Conditions and supersede any provisions therein where they are contradictory.

1 General Provisions

1.1 Definitions

1.1.1.5 “Specification”

Replace this Sub-Clause with the following:

“means the document entitled specification, as included in Annex (1), and any additions and modifications to the specification in accordance with the Contract. Such document specifies the Works (Permanent and Temporary Works, if any)”.

1.1.1.7 “Schedules”

Replace this Sub-Clause with the following:

“means the document(s) entitled schedules and referred to in the Contract Agreement, completed and carry the stamps and initials of the Employer and the Contractor with the Contract’s stamp. Such document may include the Bill of Quantities, data, lists, and schedules of rates and/or prices”

1.1.1.10 “Bill of Quantities” and “Daywork Schedule”

Replace this Sub-Clause with the following:

“means the documents so named (if any) which are comprised in Annex (1)”.

1.1.1.11 “Contract Drawings”

Add this this new Sub-Clause:

“means the drawings, included in Annex (1) carrying the stamps and initials of the Parties as well as the Contract stamp”.

1.1.1.12 “Shop Drawings”

Add this new Sub-Clause:

“means coordinated detailed drawings submitted by the Contractor and approved in writing by the Engineer that enables the proper execution on Site”

1.1.2.11 “Consultant” or “Consultants”

Add this this new Sub-Clause:

“means the person appointed by the Employer to provide the technical supervision to the Works and to act as the construction supervision consultant for the purposes of the Contract and notified in writing to the Contractor or any other person appointed from time to time by the Employer and notified in writing to the Contractor”.

1.1.2.12 “Base Programme”

Add this this new Sub-Clause:

“means the first work programme prepared by the Contractor under Sub-Clause 8.3 [Programme] to complete the Works within the Time for Completion of the Works stated in the Contract Data, and accepted in writing by the Engineer”.

1.1.3.2 “Commencement Date”

Replace this Sub-Clause with the following:

“The Commencement Date of the Works shall be the latest of any of the following events:

1. Handing over of the Existing Building
2. the Employer’s receipt of the Performance Security.
3. the Contractor’s receipt of Advance Payment No.1.”

1.1.6.10 “Determination”

Add this this new Sub-Clause:

“means the Engineer’s Determination issued under Sub-Clause 3.5 of the Conditions of Contract”.

1.1.6.11 “Existing Building”

Add this this new Sub-Clause:

“means the current standing building that will be renovated and rehabilitated located at 26 Corniche El Nile -Garden City – Cairo – Arab Republic of Egypt”.

1.1.6.12 “Annex Building”

Add this this new Sub-Clause:

“means the New building to be constructed attached to the Shephard Hotel Existing Building Corniche El Nil, Qasr Ad Dohara – Cairo – Arab Republic of Egypt”.

1.2 Interpretation

1.3 Communication

Delete sub-paragraph (b)(ii)

Add the following Paragraph at the end of this Sub-Clause:

The Contractor shall establish and maintain, for the duration of the Time for Completion of the Works, an office at the Site at which instructions, notices, Determinations or other communications may be validly served upon him. For the purpose of this Contract, the said offices shall be deemed to be the legal domicile in Egypt of the Contractor and shall be kept open at all customary hours to receive instructions, notices, Determinations or other communications unless otherwise agreed from time to time in writing with the Employer or the Engineer and the Contractor.

1.4 Law and Language

Delete and substitute as follows:

The Contract shall be governed by the laws of the Arab Republic of Egypt. All correspondences shall be in English

1.5 Priority of Documents

Delete Sub-Clause 1.5 in its entirety and substitute:

The documents forming the Contract are to be taken as mutually complementary and explanatory of one another, and a requirement in one is binding as though occurring in all. For the purposes of interpretation, and in resolving conflicts, discrepancies, errors or omissions the following constitutes the priority of documents which will be used by the Engineer:

1. Contract Agreement
 2. The Contract Data
 3. The Contract Particular Conditions
 4. The Contract General Conditions (FIDIC Red Book - First Edition 1999)
 5. CCC Basis of Offer within Annex (1)
 6. The priced Bills of Quantities within Annex (1)
 7. Tender Queries Logs of Package SH-06B REV (14) on 13 June 2024, Package SH-06C REV (9) on 9 August 2024 and CCC additional queries dated May 2025
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 10. Escalation Formula for the Adjustment in USD rate within Annex (2)
 11. The Nominated Sub-Contractors' responsibilities as listed in Annex (3).
 12. Annex (4) Permits & Approvals
 13. Annex (5) Site Facilities List
- (Hereinafter referred to collectively as the “**Contract**”).

The Contractor has already reviewed, studied and examined the documents forming the Contract as a whole to identify all requirements to perform the Works and shall not at any time exclude an item of the Works or be relieved of any obligation which is stated or implied by one contract document but not stated or implied in another.

If an ambiguity or discrepancy is found in the Contract documents, the Contractor shall immediately notify in writing the Engineer and seek clarification. The Engineer shall issue any necessary clarification or instruction or Determination according to Sub-Clause 3.5 of the Conditions of Contract.

1.6 Contract Agreement

Change the last sentence of this Clause to read as follows:

"Each Party shall bear the respective tax, stamp duties and similar charges (if any) imposed by the Law in connection with the Contract, and in accordance with Sub-Clauses 1 (1.13) of the Conditions of Contract"

1.7 Assignment

1.8 Care and Supply of Documents

Delete the last Paragraph and add the following paragraphs:

The Contractor carefully reviewed all the Contract documents and found it sufficient to perform, execute and complete the Works within the Time for Completion of the Works stated in the Contract Data and found that the Drawings and Specifications contain a complete, correct, coordinated and reasonably detailed design from which it can properly prepare the Shop Drawings.

However, if the Contractor becomes aware of a shortage, an error or defect of a technical nature in a document, which was prepared for use in executing the Works, the Contractor shall promptly give notice to the Engineer of such error or defect. Such notice shall not give the Contractor the right to request an extension of Time for Completion of the Works unless the Engineer fails to respond to that notice within 12 working days from the date of receipt of the said notice and without prejudice to Clause 13 [Variations and Adjustments].

Two (2) weeks before applying for the Taking-Over Certificate for the whole Works or for a section or part of it, the Contractor shall submit to the Engineer at the Contractor's own expense two hard copies with two digital copies, in formats as instructed/approved by the Engineer, of the As-Built Drawings, Operation and Maintenance manuals and Manufacturers' Warranties, standards, codes and publications, etc. as required by Specification for the Works subject of the Taking-Over Certificate. After the issuance of the Taking-Over Certificate of the whole Works, the Contractor shall return to the Employer all documents provided under the Contract.

1.9 Delayed Drawings or Instructions

1.10 Employer's Use of Contractor's Documents

1.11 Contractor's Use of Employer's Documents

1.12 Confidential Details

Add the following paragraphs at the end of this Sub-Clause:

The Contractor shall deal with the Contract and everything related to as private and confidential. The Contractor shall not disclose or divulge or re-produce information of any kind to any other parties or issue any statements, any drawings related to the Works or publish any information and shall not use the Site for the purpose of advertising, including that of his own operations without obtaining the prior written consent of the Engineer and the Employer.

No photographs of the Site, or of the Works, or any part thereof, or anything therein, shall be taken without the prior written approval of the Engineer. Such photographs shall not be published or circulated without the Engineer's prior written approval. Such approval shall exempt the Contractor from complying with any penalties under the Contract in this regard. The Contractor shall provide all reasonable facilities for persons authorized by the Engineer to take photographs make film/video or televise the Works. All photographs taken in accordance with the foregoing as stated above shall become the property of the Employer and copyright shall be vested in him.

1.13 Compliance with Laws

Add the following Paragraphs at the end of this Sub-Clause:

The Contractor shall comply fully and cause and require the Subcontractors to comply fully with all general and local acts, building codes, fire and sanitary codes, ordinances, rules, regulations, orders, directives and statutes of any and all governmental authorities, boards and commissions which may be applicable to the performance of the Works. The Contractor shall comply, and shall require Subcontractors to comply, with the provisions of the Safety and Sanitary Codes, including all amendments thereto and all standards and regulations issued thereunder.

The Contractor shall be fully responsible for the acts omissions of itself, officers, employees, agents, licensees, design and construction teams, Subcontractors, invitees, and guests and their respective officers, employees, agents, licensees, suppliers, guests, Subcontractors and all other persons performing any elements of the Works or supplying labour, services, materials and/or Plant for or under a contract with the Contractor or any Subcontractor. The Contractor shall enforce discipline and good order among its employees at all times and shall cause its Subcontractors to do likewise.

The Contractor shall comply with all local authorities' rules, regulations, orders, directives applicable to wage, and employment practices. In all cases, the Contractor shall be bound by the labour and social Insurance Laws and regulations and shall be responsible of any infringements thereof and shall bear any subscription, fees, duties or other related amount and provide Employer with receipts evidencing payment within ten days of effecting the payment.

The Contractor shall also remain responsible to execute the Works in accordance with the clearances to statutory authorities' approvals obtained by the Employer/Engineer as may be required for smooth functioning of the complete facilities included in the Works.

The Contractor shall not use any explosive(s) without the Engineer's prior written approval provided that it fully complies with the Arab Republic of Egypt regulations in this regard. Refusal to give such permission shall not entitle the Contractor to any claim for extension of Time for Completion of the Works or for additional payment.

1.14 Joint and Several Liability

2 The Employer

2.1 Right of Access to the Site

Add the following paragraph at the end of this Sub-Clause:

The Contractor acknowledges that its possession of the Site is only for the sole purpose of execution of the Works and it shall not use the Site for any other purpose whatsoever. It is further acknowledged and fully accepted by the Contractor that the Site is and shall remain under the full jurisdiction of the Employer, who may exercise control as it deems necessary in respect of entry to and/or temporary occupation of portions of the Site by any other contractors, suppliers or any person.

2.2 Permits, Licences or Approvals

Add the following Paragraph at the end of this Sub-Clause:

The Contractor shall be responsible for securing and paying for all licenses related to the logistical issues for the execution and completion of the Works as required by the laws of the Arab Republic of Egypt. The building permits related to the Existing Building shall be provided by the Employer.

The Contractor shall provide all information to the Engineer required to obtain any third authority's approval.

In case that the Contractor shall obtain any license and/or approval it shall immediately submit a copy of the same to the Engineer and Employer

2.3 Employer's Personnel

2.4 Employer's Financial Arrangements

2.5 Employer's Claims

Delete "only" and ", in accordance with this Sub-Clause" from the last sentence of the fourth paragraph.

3 The Engineer

3.1 Engineer's Duties and Authority

Add the following paragraphs at the end of this Sub-Clause:

The Engineer may exercise the authority specified in, or necessarily to be implied from the Contract, including carrying out such duties as issuing information, instructions, orders, Valuations, Certificates, Determinations and Decisions as specified in the Contract. The Engineer, however, is required to obtain the Employer's prior written approval before exercising such authority in respect of the following:

- (a) Instructing any Variations, alterations, additions, omissions, changes to the Specification under Sub-Clause 13.1 [Right to Vary] and any instruction results in increase to the Contract Price and/or Time for Completion.
- (b) Ordering the expenditure of Provisional Sums.
- (c) Ordering tests to be carried out as per the Specifications, or witnessed, within the Arab Republic of Egypt under sub-Clause 7.4 [Testing].

The Employer may attend with the Engineer, any final test or inspection of the Works for which the Contractor has applied for a Taking-Over Certificate or a Performance Certificate.

Notwithstanding the obligation as set out above to obtain approval, if in the opinion of the Engineer, an emergency occurs affecting the safety of life, or of the Works, or of adjoining

property, he may, without relieving the Contractor of any of his duties and responsibilities under the Contract, instruct the Contractor in writing to execute all such work or to do all such things as may, in the opinion of the Engineer, be necessary to abate or reduce such risk. The Contractor shall immediately comply, despite the absence of the respective approval of the Employer, with any such instruction of the Engineer. The Contractor, in such case, shall be entitled to an additional payment equal to the cost it incurred due to the Engineer's instruction.

3.2 Delegation by the Engineer

3.3 Instructions of the Engineer

3.4 Replacement of the Engineer

3.5 Determinations

4 The Contractor

4.1 Contractor's General Obligations

Delete Sub-Clause 4.1 in it's entirely and replace with the following Paragraphs:

The Contractor shall supply all material, equipment and supplies and perform all Works in conformity with the approved Drawings and Specification and other Contract documents and make no deviations without the prior written approval of Employer. Employer may inspect and conduct tests to determine whether the Works are being performed according to the Contract documents or not. It is understood and agreed that neither Employer's inspection tests or approvals nor its failure to make any inspection or test or to discover defective workmanship, materials or equipment nor the payment of any funds by or on behalf of Employer shall relieve the Contractor of its responsibility to perform the Works in accordance with the Contract documents or constitute a waiver or acceptance of such defects if any inspections or tests reveal a failure of the Works to comply with the requirements of the Contract documents. If the inspections or tests reveal a failure of the Works to comply with the requirements of the Contract documents, the Contractor shall bear all costs of such inspection or tests in addition to the costs of remedying such failure and such cost shall not be included in the Contract Price or be claimed to the extent such costs are attributable to such inspection or test and, if appropriate, shall not be entitled to an extension of Time for Completion thereof.

The Contractor shall be fully responsible for all construction means, methods techniques sequences and procedures.

The Contractor acknowledges that time is of the essence in this Contract and thus shall maintain and assign to the execution of the Works at all times sufficient staff and personnel to perform their services in a skilled, professional, and satisfactory manner so as not to delay the progress of the Works. Accordingly, Contractor undertakes to provide the necessary expertise, staff workforce, Temporary Works, Contractor's equipment and all other resources, construction means, methods, techniques and procedures, required to ensure the timely progress and completion of all of the Works within the Time for Completion of the Works.

The Contractor is deemed to have inspected and examined the Site the Existing Building and its surroundings and information available in connection therewith (notably the documents listed in Annex 1 and Annex 4) and accepts its current conditions and is willing, able and capable to perform the Works for the Project in an efficient and timely manner

and to have satisfied himself as to the form and nature thereof, the extent and nature of work and materials necessary for the execution and completion of the Works and the remedying of any defects therein, and means of access to the Site including cleaning of Site wherever required for proper execution. The Contractor also is deemed to have obtained all necessary information, subject as mentioned above, as to risks, contingencies and all other circumstances which have been priced and taken into consideration in his tender negotiated prices before signing the Contract,

The Contractor is also deemed to have reviewed all the permits and approvals of the Existing Building and Annex Building that have been obtained and declare that these, permits and approvals are complete and sufficient to immediately start the performance and implementation of the Works as per the terms and Conditions of this Contract.

Unless delayed by an Employer's-responsible event, the Contractor shall on the Commencement Date diligently carry on and prosecute all of the Works without stoppage, delay or cessation. In the event of any dispute for whatever reason, Contractor shall continue to perform under this Contract, and it shall be the responsibility of Contractor to cause its Subcontractors to do likewise

To whatever extent any Engineer's instruction is unclear, confusing or uncertain to the Contractor; the Contractor shall immediately request in writing a clarification from the Engineer. The Engineer shall notify the Contractor of the necessary clarification not later than 14 days from the date of the Engineer's receipt of the request clarification.

The Contractor shall indemnify and hold harmless the Employer, the Engineer, Consultants, surveyors and any inspecting/testing agents against and from all liabilities, obligations, fines, damages, penalties, claims, costs, charges and expenses including without limitation, attorneys' fees and disbursements, which may be imposed upon or incurred by or asserted against any such persons arising out of the performance of the Works by the Contractor.

The Contractor shall, with due care and diligence, design (to the extent provided for by the Contract), execute and complete the Works and remedy any defects therein in accordance with the provisions of the Contract and instructions of the Engineer. The Contractor shall provide all superintendence, labour, materials, Plant, Contractor's equipment and all other things, whether of a temporary or permanent nature, required in and for such design, execution, completion and remedying of any defects, so far as the necessity for providing the same is specified or is reasonably to be inferred from the Contract.

The Contractor shall at his own cost, before fourteen (14) days of applying for the Taking-Over Certificate, prepare and submit for the Engineer's approval, As-built Drawings detailing the Permanent Works as executed with the manufacturer's operation and maintenance manuals, in sufficient details to enable the Employer to operate, maintain, dismantle, reassemble, adjust and introduce changes to the Permanent Works. The Works shall not be considered to be completed for the purpose of Taking-Over until the As-built Drawings together with operation and maintenance manuals including all product manufacturers' warranties, data, information, lists of spare parts and any literature required by Specification have been submitted to and approved by the Engineer. Approval by the Engineer shall not relieve the Contractor from any of his responsibilities under the Contract Agreement.

Before covering any work elements, the Contractor shall submit to Engineer, for site inspection and approval, two copies of the respective approved Shop Drawings but marked to show the installed/executed element as it were built.

The Contractor shall secure separate metering for the water and electricity consumption.

The Contractor shall cooperate and coordinate fully with the Engineer, the Employer and Consultants and inspecting and testing agents. The Contractor shall also be responsible for coordination between itself and its Subcontractors, Nominated Subcontractors and suppliers to avoid any co-ordination problems. The Contractor shall be fully responsible for the Works to be performed and executed by the Subcontractors.

The Contractor shall attend all regular and special meetings scheduled by the Engineer on the progress, co-ordination and any other matter in connection with the Works.

The Contractor is required to avoid the unnecessary repeated submissions or inspection requests.

With a view to approve standards of installation, function and finish, the Contractor shall keep the existing approved mock-ups which indicate the minimum accepted standard, by which subsequent work shall be compared.

4.2 Performance Security

4.3 Contractor's Representative

4.4 Subcontractors

4.5 Assignment of Benefit of Subcontract

4.6 Co-operation

4.7 Setting Out

4.8 Safety Procedures

Insert new paragraph (f):

The Contractor shall design a specific safety program including the fire hazard for the Works and shall comply and require its Subcontractors to comply with the safety program, the normal and usual precautions for the Project. The Contractor shall provide all reasonable protection to prevent fire, damage, injury or loss to persons and property. As the Works progress, the Contractor shall take such action as may be necessary to maintain safety and remove from the Site any personnel of the Contractor or Subcontractors who do not abide by or who violate such programs and/or precautions.

4.9 Quality Assurance

4.10 Site Data

4.11 Sufficiency of the Accepted Contract Amount

4.12 Unforeseeable Physical Conditions

4.13 Right of Way and Facilities

4.14 Avoidance of Interference

4.15 Access Route

4.16 Transport of Goods

4.17 Contractor's Equipment

4.18 Protection of the Environment

4.19 Electricity, Water and Gas

4.20 Employer's Equipment and Free-Issue Material

4.21 Progress Reports

Add the following Paragraph at the end:

The Contractor shall send to the Engineer daily reports describing the actual resources and work activities proceeding during the day and the planned for next day.

4.22 Security of the Site

4.23 Contractor's Operations on Site

Delete Sub Clause 4.23 in it's entirely and replace with the following Paragraphs:

The Contractor shall confine its operations at the Site to areas therein permitted by the Laws of the Arab Republic of Egypt, ordinances, permits and the Contract documents and shall not unnecessarily store any material or equipment on the Site

During the execution of the Works the Contractor shall keep the Site reasonably clean free from all unnecessary obstruction accumulations of water, waste materials and rubbish and shall store or dispose of any Contractor's Equipment and surplus materials and clear away and remove from the Site any wreckage, rubbish or Temporary Works no longer required.

The Contractor shall restore existing facilities such as roads other paved surfaces, fencing, curbing and the like to at least their preconstruction conditions.

Failure by the Contractor to maintain any requirements of this Sub-Clause, shall entitle the Engineer or Employer, to withhold a portion of the Contractor's due payment until such requirement is maintained.

4.24 Fossils

4.25 "Dumping of Waste Material"

Insert new Sub Clause 4.25 as follows:

"Construction debris or any other waste materials arising from the Works shall be removed from the Site upon the approvals of the Engineer.

The Contractor shall dispose all such materials per Egyptian Municipality requirements including transportation to designated Egyptian Municipality dumping grounds (except directed otherwise in writing by the Engineer as per Sub-clause 13.3 (Variation Procedures), the Engineer may instruct the Contractor to furnish dumping receipts evidencing the same.”

5 Nominated Subcontractors

5.1 Definition of “nominated Subcontractor”

5.2 Objection to Nomination

5.3 Payments to nominated Subcontractors

The Contractor shall pay to the Nominated Subcontractors the amounts which the Engineer certifies. These amounts plus a markup of 17.5% for indirect costs, overheads and profit excluding VAT shall be included in the Contract Price in accordance with subparagraph (b) of Sub-Clause 13.5 [*Provisional Sums*], except as stated in Sub-Clause 5.4 [*Evidence of Payments*].

5.4 Evidence of Payments

6 Staff and Labour

6.1 Engagement of Staff and Labour

6.2 Rates of Wages and Conditions of Labour

6.3 Persons in the Service of Employer

6.4 Labour Laws

6.5 Working Hours

Delete Sub Clause 6.5 in it's entirely and replace with the following Paragraph:

The Contractor shall comply with the Egyptian Labour Law with respect to locally recognized Fridays, festivals and religious holidays and the reduced working hours during the holy month “Ramadan”.

The Contractor may continue the Works on the Site during nights and/or the locally recognized days of rest provided obtaining the Engineer’s prior written approval. The cost incurred by the Employer in such cases, will be charged to the Contractor by deductions from the Interim Payments except where the work is unavoidable and cannot be performed during the official Working Hours for technical reasons, or necessary for the protection of life or property of for the safety of the Work. The hour rates shall be according to the mutual agreed upon rates.

6.6 Facilities for Staff and Labour

Delete Sub Clause 6.6 in it's entirely and replace with the following Paragraphs:

The Contractor shall be allowed to provide, at its expense, storage areas and accommodation for its personnel on Site provided that it obtain the Employer's prior written approval on the proposed location, area and layout.

The Contractor shall also provide complete facilities for the Employer's Personnel on Site as per the list within Annex (5). The Employer's Personnel facilities include the office furniture and equipment. The Contractor shall proceed with the Site temporary installations after obtaining the Engineer's approval to its detailed proposal.

The Contractor shall bear the cost of the electrical, water consumption, telephone, ADSL and all consumables.

6.7 Health and Safety

Add the following Paragraphs at the end of this Sub-clause:

The Contractor shall immediately report to the Engineer on any accident or incident occurs at the Site within twenty-four (24) hours from the accident or incidents occurrence. The Contractor shall also report on such accident or incident to the appropriate local authorities whenever it is required to do by Law.

The Contractor shall observe and comply in all respects with the rules, regulations and directions of the Ministries of Health, Environment, Tourism, and Culture, applicable on the Site facilities and activities.

6.8 Contractor's Superintendence

6.9 Contractor's Personnel

6.10 Records of Contractor's Personnel and Equipment

6.11 Disorderly Conduct

7 Plant, Materials and Workmanship

7.1 Manner of Execution

7.2 Samples

Delete Sub Clause 7.2 in it's entirely and replace with the following Paragraphs:

The Contractor shall effect the Material submittals for the Engineer's approval in such times that allow sample time for the Engineer's review, comments, approvals, purchasing, manufacturing, delivery to Site and the Engineer's inspection and acceptance for using in/for the Works without any delay to the Time for Completion. The Contractor shall be responsible for any delay in the Engineer's approval if caused by submittals not complying with the Specification.

The Contractor shall provide an adequate enclosed store at the Site for the samples approved by the Engineer. Each sample shall be labelled as to Specification item reference, manufacturer's name, date and reference of Engineer's approval. This store shall be in the custody of the Engineer.

The Engineer shall issue the respective approval/comments to the Contractor within seven (7) working days from the date of receiving such submittals. The Contractor shall not order Materials before obtaining the Engineer's approval to the respective material submittals and Shop Drawings.

7.3 Inspection

7.4 Testing

7.5 Rejection

7.6 Remedial Work

7.7 Ownership of Plant and Materials

7.8 Royalties

8 Commencement, Delays and Suspension

8.1 Commencement of Work

8.2 Time for Completion

Add the following Paragraph at the beginning of this Sub-Clause:

- (1) The Time for Completion of Package SH-06B Works shall be eighteen (18) Months, subject to the handing over of the Annex Building within (12) Months from the Commencement Date (hereinafter referred to as the "Time for Completion of Package SH-06B"),
- (2) The Time for Completion of Package SH-06C Works shall be completed four (4) Months from the completion of Package SH-06B, (hereinafter referred to as the "Time for Completion of Package SH-06C");
- (3) Sectional completion time as follows:
 - (2) Mock-up rooms in Existing Building within three (3) months from the Commencement Date
 - All Basements to the 4th Floor in Existing and Annex Buildings within three (3) months from Annex Building handing over"

8.3 Programme

Delete Sub Clause 8.3 in it's entirely and replace with the following Paragraphs:

Within 28 days from the Commencement Date, the Contractor shall submit to the Engineer for its review a programme showing the sequence by which it proposes to carry out the Works. The programme shall be based on a critical path network detailing all activities of the mobilization, procurement, construction and the resources with resources allocation. The procurement shall include all the Contractor's submissions in respect of Subcontractors, materials, Shop Drawings, method statements, ext. showing the time allowance for the authorities, whenever is required, and or the Engineer's approval processes, materials ordering, manufacturing, if applicable, and delivery to Site. The construction period within the programme shall include the Engineer's/Consultants site

inspections and approvals. Tests on completion shall include prior successful testing and commissioning of the electro-mechanical systems.

The programme shall be prepared using the latest version of Primavera software and shall be submitted to the Engineer together with a hard copy detailing the sequence, predecessor or successor, the activity, early start, early finish, late start, late finish, the floats, and the resources.

The Engineer shall review the programme with respect to the reasonability of its assumptions and the logic of its network, resources, durations, relations between the different activities and floats. The Engineer shall either accept the programme, if in its opinion is workable, or communicate its comments to the Contractor. The Contractor shall take into consideration the Engineer's comments, adjust and resubmit the adjusted programme to be considered as the Base Programme.

The Contractor shall submit to the Engineer Bi-Weekly Programme Updates. Each Update shall be accompanied by a narrative report describes the actual progress of the Works, resources vs the planned and cause of any deviation from the Base Programme and propose the corrective measures to overcome any slippage or delay.

The Engineer's acceptance of such programs or the Contractor's arrangements shall not relieve the Contractor of any of its duties or responsibilities under the Contract.

The Contractor shall keep the programme or updates, if any, under constant review and on view in his site office.

The Contractor shall revise the Base Programme whenever the Time for Completion of the Works is extended.

Failure by the Contractor to submit the Programme or its timely updates to the Engineer shall constitute a default by Contractor deserves withholding 10% of the Interim Payment Certificate until the Contractor fulfils such requirement.

8.4 Extension of Time for Completion

Add the following Paragraph at the end of this Sub-Clause:

The Primavera application shall be the only software to be used to determine the Contractor's entitlement to the extension of Time for Completion of the Works based on the critical path method. No other software or way shall be utilized for this purpose.

The Contractor shall not be entitled to an extension of Time for Completion of the Works caused by delays of approvals to its proposals or submittals that are not conforming to Specification and the other Contract documents.

The extension of Time for Completion of the Works shall be determined separately for each event gave rise for time impact. Grouping of events shall not be allowed

In case the completion of a certain part(s) of the Works was delayed due to Employer's responsible events, the Time for Completion of the Works shall be extended for this part(s) only and shall not relieve the Contractor from its obligation to complete the other parts for Taking-Over in accordance with the accepted Base Programme.

If an event caused delay to a certain part of the Works, the Employer may choose, at its sole discretion, to take-over other parts or packages within the Time for Completion of the Works.

8.5 Delays Caused by Authorities

8.6 Rate of Progress

8.7 Delay Damages

Delete Sub-Clause 8.7 in its entirety and replace it with the following:

If the Contractor failed to comply with Sub-Clause 8.2 [Time for Completion], then the Contractor shall pay to the Employer the sum of the Delay Penalties calculated in accordance with the percentages stated in the Contract Data and Contract in addition to the cost of supervision of the Works incurred by the Employer due to the Contractor's delay. The Employer may without prejudice to any other method of recovery, deduct the amount of the Delay Penalties from any monies due or shall become due to the Contractor. If these monies were insufficient to cover the amount of the penalties, the Employer shall partially liquidate any Contractor's bank guarantee to recover its entitlement. The payment or deductions of such amounts shall not relieve the Contractor from his obligation to complete the Works, or from any other of his obligations and liabilities under the Contract.

The Delay Penalties for each week of delay shall be equal to one percent (1%) of the Accepted Contract Amount, with a limit of 10% of the Accepted Contract Amount.

8.8 Suspension of Work

8.9 Consequences of Suspension

8.10 Payment for Plant and Materials in Event of Suspension

8.11 Prolonged Suspension

8.12 Resumption of Work

9 Tests on Completion

9.1 Contractor's Obligations

9.2 Delayed Tests

9.3 Retesting

9.4 Failure to Pass Tests on Completion

10 Employer's Taking Over

10.1 Taking Over of the Works and Sections

Add the following Paragraphs at the end of this Sub-Clause:

The Contractor shall submit for the Engineer's approval, fourteen (14) days before applying for the Taking-Over Certificate, As-built Drawings. The Works shall not be considered to

be completed for the purpose of Taking-Over until the As-built Drawings together with data, information and any literature required by Specification have been submitted to and approved by the Engineer.

The Contractor shall complete any outstanding works and remedy any defects referred to in the Taking-over punch lists within the period as mutually agreed between Parties to the Contract, failing which, the issuance of the Taking-over Certificate shall be withheld in case of major defects that hinder the exploitation of the Works. The Contractor shall then re-submit for the Taking-over Certificate after completing the necessary rectification works.

10.2 Taking Over of Part of the Works

10.3 Interference with Tests on Completion

10.4 Surfaces Requiring Reinstatement

11 Defects Liability

11.1 Completion of Outstanding Work and Remedying Defects

Add the following Paragraph:

Defect Notification Period for the whole Works shall mean a period of 365 days calculated from the issuance date of the Taking-Over-Certificate.

11.2 Cost of Remedying Defects

11.3 Extension of Defect Notification Period

11.4 Failure to Remedy Defects

11.5 Removal of Defective Work

11.6 Further Tests

11.7 Right of Access

11.8 Contractor to Search

11.9 Performance Certificate

11.10 Unfulfilled Obligations

11.11 Clearance of Site

12 Measurement and Evaluation

12.3 Evaluation

Replace “10” in paragraph a (i) with “20”

13 Variation and Adjustments

13.1 Right to Vary

Delete the last Paragraph and substitute:

The Contractor shall not make any alteration and/or modification of the Permanent Works, unless and until the receiving an Engineer’s instruction, stating that it is issued under Sub-Clause 13.1 [Right to Vary] approved in writing by the Employer or receiving the Employer’s written approval to a Contractor’s Variation proposal.

13.2 Value Engineering

13.3 Variation Procedure

Sub-Clause 13.3:

Delete “as soon as practicable” in first paragraph, second line, and substitute “within the period stated in the instruction “

Delete the last sentence and substitute:

Upon instructing or approving a Variation, the Engineer shall proceed in accordance with Sub-Clause 3.5 to agree or determine adjustments under Sub-Clause 14.4. These adjustments shall include 25% excluding VAT of the direct cost for the direct and indirect overheads including the engineering in addition to profit and shall take account of the Contractor’s submissions under Sub-Clause 13.2 if applicable. The direct cost consists of the cost of the materials including custom duties, transportation to the Site, direct labour and consumption of the parts of the used equipment/tools. In case a Subcontractor executed the work, these adjustments shall include 17.5% excluding VAT of the Subcontractor’s approved amount for the Contractor’s overheads and profit.

Within fourteen (14) days, or a reasonable time accepted by the Engineer, from receiving a Variation Instruction under Sub-Clause 13.1 [Right to Vary], the Contractor shall submit its price proposal with the necessary particulars for the Engineer’s approval. Such proposal may use the Contract item rates where appropriate. The Engineer shall proceed in accordance with Sub-Clause 3.5 [Determinations].

The Engineer may apply the Contract Agreement’s rates in evaluating the Variation Order, if in its opinion, is applicable.

13.4 Payment in Applicable Currencies

13.5 Provisional Sums

13.6 Daywork

Delete the last sentence of the first Paragraph “If a Daywork Schedule is not included in the Contract, this Sub-Clause shall not apply” and substitute with the following:
“If a Daywork Schedule is not included in the Contract, a mutually agreed list, signed by both Parties, of the labour and material shall be used in applying this Sub-Clause 13.6. Daywork shall proceed after receiving the Employer’s instruction/approval”.

13.7 Adjustments for Changes in Legislation

13.8 Adjustments for Changes in Cost

Add the following at the beginning:

Annex (2) includes the escalation formula for the adjustment of USD which shall be applied according to the official exchange rate of the Central Bank of Egypt at the date of issuance of the invoice from the Contractor”.

14 Contract Price and Payment

14.1 The Contract Price

Delete sub-paragraph (a) and substitute:

(a) the Contract Price shall be the Re-measure Accepted Contract Amount and subject to adjustments in accordance with the Contract.

14.2 Advance Payment

Change “advance payment” to “Advance Payments” through this Sub-Clause.

Change “guarantee” to “Advance Payment Guarantees” through this Sub-Clause.”

Add the following Paragraph at the end:

The Advance Payments paid to the Contractor shall be repaid to the Employer prorate to the relationship of the total amount of executed Works and unfixed materials of Monthly Payment Certificate to the Contract Price (The Accepted Contract Amount adjusted by the Variations).

14.3 Application for Interim Payment Certificates

Add the following Paragraph at the end of this Sub-Clause:

The Contractor’s Representative shall sign the monthly Interim Payment Certificate. The Works executed, on-Site unfixed Materials and uninstalled Plant taken into account in the Interim Payment Certificate shall be limited to that inspected and accepted by the supervision consultant appointed in writing by the Employer and notified to the Contractor. The quantities of such Materials shall be limited to that required to complete the Works.

The amount taken into account against on-Site unfixed Materials and un-installed Plant under Sub-Clause 14.5 [Plant and Materials intended for the Works] shall be 60% of the rate of the Bill of Quantities.

The Engineer shall check and adjust the Interim Payment Certificate, if necessary, and return it to the Contractor within 14 days. If the Engineer finds a need for further particulars for such adjustments, it shall communicate with the Contractor within 5 days from the date of receipt of the Interim Payment Certificate. If the Contractor have any comments concerning such adjustments/particulars, it shall present it in writing to the Engineer within 5 days from being notified, otherwise the Contractor shall be deemed has accepted the Engineer’s adjustments.

14.4 Schedule of Payments

Add the following Paragraphs at the end of this Sub-Clause:

The Employer shall pay to the Contractor Advance Payments in accordance with paragraph (L) of the Contract Agreement. Repayment shall be in accordance with Sub-Clause 14.2.

The Contractor shall submit its Cash Flow Plan along with the Time Schedule.

14.5 Plant and Materials intended for the Works

Replace “eighty percent of the Engineer’s determination of the cost of Plant and Materials” with “70% of rate of the Bill of Quantities” in the first line of the penultimate paragraph.

Insert a new paragraph at the end of this Sub-Clause to read:

“The Contractor shall keep all such materials properly segregated and labelled and permit the Consultant to inspect or remove such materials at any time. Provided that the Employer has not taken possession of such materials, the Contractor shall continue to be responsible for the care, storage, delivery and insurance of such materials and shall indemnify the Employer against any loss or damaged cause to them”

14.6 Issue of Interim Payment Certificates

14.7 Payment

In the first line of subparagraph (b): Replace “56 days” with “28 days”

14.8 Delayed Payment

14.9 Payment of Retention Money

Delete this Sub-Clause in entirety and substitute:

When the Taking-Over Certificate has been issued for the Works, the first half of the Retention Money (2.5%) shall be certified by the Engineer for payment to the Contractor. The second half of the Retention Money (remaining 2.5%) shall be released by the Engineer seven (7) working days after the issuance of the Performance Certificate.

14.10 Statement at Completion

14.11 Application for Final Payment Certificate

14.12 Discharge

14.13 Issue of Final Payment Certificate

14.14 Cessation of Employer's Liability

14.15 Currencies of Payment

15 Termination by Employer

15.1 Notice to Correct

Add the following Paragraph at the end of this Sub-Clause:

After receiving such notice, the Contractor shall immediately submit to the Engineer its proposed corrective measures to make good the failure and remedy, Contractor shall also confirm the date by which, such measures shall commence in order to complete within the time specified in the Engineer's notice. Neither the time specified in such notice nor the actual time that has elapsed until completing the required correction shall imply or entitle the Contractor to any extension of Time for Completion.

15.2 Termination by Employer

In the fourth Paragraph add "and all uninstalled Materials and/or Plant approved by the Engineer and accordingly belongs to the Employer, if any," after "and other design documents made by or for him".

15.3 Valuation Date of Termination

Add the following Paragraph:

This valuation shall not include the value of any Contractor's Documents, Materials, Plant and works not approved by Engineer. In such case, the unapproved Material and Plant shall be promptly returned to the Contractor and removed from the Site.

15.4 Payment after Termination

15.5 Employer's Entitlement for Termination

16 Suspension and Termination by Contractor

16.1 Contractor's Entitlement to Suspend Work

16.2 Termination by contractor

16.3 Cessation of Work and Removal of Contractor's Equipment

16.4 Payment on Termination

17 Risk and Responsibility

17.1 Indemnities

17.2 Contractor's Care of the Works

17.3 Employer's Risks

17.4 Consequences of Employer's Risks

17.5 Intellectual and Industrial Property Rights

17.6 Limitation of Liability

18 Insurance

18.1 General Requirements for Insurance

Delete the first paragraph and replace it with the following:

"In this Contract and in this Clause 18, the Contractor is the insuring Party"

Delete the third and fourth paragraphs and replace it with the following:

"The insurances to be provided under this Sub-Clause represent the minimum requirement for the Employer, and the Contractor may, at the Contractor's expense, add such other insurances that the Contractor may deem prudent"

Delete "Neither Party shall" and "other Party" in the first sentence of the ninth Paragraph and replace it with:

"The Contractor shall not" and "the Employer" respectively.

Delete second sentence of the ninth paragraph and replace it with the following:

"The Contractor shall be responsible for notifying the insurers of any changes in the nature, extent or Programme for the execution of the Works and the adequacy and validity of the insurances in accordance with the Contract at all times during the performance of the Contract".

18.2 Insurance for Works and Contractor's Equipment

Delete "for not less than the full reinstatement cost including the costs of demolition, removal of debris and professional fees and profit" in the first sentence of the first Paragraph and substitute "for an amount equal to the Contract Price to cover any additional costs incidental to the rectification of loss or damage, including professional fees and the cost of demolition and removal of debris"

After the end of the first paragraph, add the following:

Insurer of the Works shall be a company registered in Egypt approved in writing by the Employer.

18.3 Insurance against Injury to Persons and Damage to Property

Delete "to any physical property" in first sentence of the first Paragraph and substitute it with the following:

"to any physical properties other than the Works"

Delete the second Paragraph and replace it with the following:

The insurance for Injury to person per shall be for a limit five hundred thousand Egyptian Pound (LE. 500,000) per person per occurrence and without aggregate for damage to property.

18.4 Insurance for Contractor's Personnel

In the first sentence of the second Paragraph, delete "The Employer and the Engineer" and replace it with the following:

"The Employer and every member, officer and employee thereof, the Engineer, and every member of his staff and every other authorised person."

18.5 Damage to the Works

Add the following as new Sub-Clause 18.5:

"If any loss or damage occurs to the Works, all amounts paid by the insurer under the policy effected pursuant to Sub-Clause 18.2 shall be paid to the Employer. The Engineer shall, at his sole discretion, either:

- a) order the Contractor to replace or repair the parts of the works lost or damaged, or
- b) take such other measures as he deems necessary to replace or repair the lost or damaged parts of the Works.

In the event that the Engineer, after obtaining the Employer's approval, orders the Contractor to replace the lost or damaged parts, the Employer shall pay to the Contractor either the amount received from the insurers in respect of the loss or damage or the cost incurred by the Contractor in executing the replacement or repair (valued in accordance with the provisions of Clause 13, whichever is the lesser)

18.6 Liabilities

Add the following new Sub-Clause 18.6:

"The requirements contained herein as to types and limits, as well as Employer's approval of insurance coverage to be maintained by the Contractor, are not intended to and shall not in any manner limit or qualify the liabilities and obligations assumed by Contractor under this Contract. Contractor shall require each lower-tier Subcontractor to comply with all insurance requirements appropriate for its scope of work, and any deficiency shall not relieve the Contractor of its responsibilities herein. Upon written request from Engineer, the Contractor shall provide the Employer with complete, certified copies of all required insurance policies, and/or copies of lower-tier Subcontractors' certificates of insurance. The Employer shall have no duty to advise the Contractor in the event the Contractor's insurance does not comply with the requirements of this Contract. If the Contractor fails to procure and maintain all the insurance coverage required by this Sub-Clause, the Contractor shall indemnify and hold harmless each member of the Employer, the Engineer from and against all claims, demands, costs, charges and expenses that would have been covered by such insurance had Contractor complied with its obligations herein."

19 Force Majeure

19.1 Definition of Force Majeure

19.2 Notice of Force Majeure

19.3 Duty to Minimize Delay

19.4 Consequences of Force Majeure

19.5 Force Majeure Affecting Subcontractor

19.6 Optional Termination, Payment and Release

19.7 Release from performance under the Law

20 Claims, Disputes and Arbitration

20.1 Contractor's Claims

In the fifth paragraph: delete "42" and replace it with "35"

Delete the last sentence of the last paragraph and replace with the following:

"Notwithstanding any other provision of the Contract, including without limitation the provisions of Sub-Clause 14.14 [Cessation of Employer's Liability], if the Contractor fails to comply with any of the provisions of the Contract, including without limitation the provisions of Sub-Clauses 1.9 [Delayed Drawings or Instructions], 8.4 [Extension of Time for Completion], 8.5 [Delays Caused by Authorities] and 20.1 [Contractor's Claims], in respect of any act, event or omission of whatever nature which in the opinion of the Contractor should result in an increase in the Contract Price and/or an extension of Time for the Completion, such failure shall constitute on the part of the Contractor a definitive and irrevocable waiver of, and release of the Engineer and the Employer from any and all claims arising from any such act, event or omission, and the Contractor shall be irrevocably stopped from raising any claims arising from any such act, event or omission thereafter."

Add the following Paragraphs at the end of this Sub-Clause:

"Any Contractor claims concerning the Time for Completion shall be substantiated with a detailed time analysis based on the latest work programme update that was submitted to the Engineer immediately before the occurrence of the event that gave rise to the delay.

The Contractor's claim for any additional payment shall be based on and limited to the actual costs and damages as evidenced by the Project contemporary records.

The concurrent delays, if any, shall entitle the Contractor only to an Extension of Time to be submitted according to Sub-Clause 20.1 of the Contract without any entitlement or right to claim any prolongation costs".

20.2 Appointment of the Dispute Adjudication Board

20.3 Failure to Agree Dispute Adjudication Board

20.4 Obtaining dispute Adjudication Board's Decision

20.5 Mediation

Delete Sub-Clause 20.5 and replace with it with the following:

Where notice of dissatisfaction has been given in accordance with Sub-Clause 20.4, the parties shall attempt to settle such dispute through mediation in accordance with the rules of the Cairo Regional Centre for International Commercial Arbitration. In case the parties do not agree on a mediator or if the mediator has not been appointed according to article 6 paragraph 1 (of CRCICA Mediation Rules) within the time period agreed by the parties; or where the parties have not agreed on a time period, within 14 days from the date of the commencement of the mediation, a mediator shall be appointed by the Centre from amongst the members listed in the Centre's Panel of Accredited Mediators.

There shall be only one mediator, and the location of the mediation shall be held in Cairo, Egypt at the CRCICA headquarters.

The Party seeking to commence mediation shall submit to the Cairo Regional Centre for International Commercial Arbitration the following:

- a) Names of Parties in dispute
- b) Contact information of each Party and their representatives
- c) Background on the dispute and its amount
- d) Required qualifications for mediators whom the Cairo Regional Centre for International Commercial Arbitration will select
- e) Language of the proceedings

If either the Employer or the Contractor is dissatisfied with the outcome of mediation, then either the Employer or the Contractor may give notice to the other Party, with a copy to the Engineer, of his intention to commence arbitration as to the matter in dispute.

20.6 Arbitration

Delete Sub-Clause 20.6 and replace with the following:

"Any dispute, in respect of which:

1. The decision, if any, of the DAB's decision has not become final and binding pursuant to Sub-Clause 20.4 and
2. The outcome of the mediation does not satisfy any of the Parties

shall be resolved by arbitration as provided in this Sub-Clause 20.6 according to the rules of Cairo Regional Centre for International Commercial Arbitration (CRCICA Rules)

- a) The seat of arbitration shall be Cairo, Egypt.
 - b) The language of arbitration shall be English.
 - c) The number of arbitrators shall be three.
 - d) The law governing the substance of the arbitration shall be the Egyptian Law.
 - e) The law governing the validity of the arbitration agreement shall be the Egyptian Law.
 - f) The arbitration procedures shall be confidential.
 - g) The arbitral tribunal shall be competent to decide the validity of the arbitration agreement.
 - h) The arbitral award shall be final and binding.
-

20.7 Failure to Comply with Dispute Adjudication Board's decision

20.8 Expiry of Dispute Adjudication Board's Appointment

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed furniture Works
for Existing and Annex Building**

**Annex (1)
CCC Basis of Offer
Priced Bill of Quantities
Tender Queries Log
Drawings
Specifications**

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed furniture Works
for Existing and Annex Building**

**Annex (2)
USD Exchange Rate Formula**

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

Annex (2)

USD Escalation Formula

Pricing based on the escalation formula and Price Adjustment for foreign currency and basic materials shall be applied as follows:

$$\mathbf{V2\ (EGP) = V1\ (EGP) * (1\text{-}Advance\ Payment) * 0.7 * ((new\ USD\ rate / fixed\ USD\ rate) - 1)}$$

Where:

- V1 (EGP): The gross value of the certified work done for the particular payment certificate
- V2 (EGP): The additional or deduction value due to the increase or decrease of the USD exchange rate
- USD fixed rate = 50.6 EGP

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed furniture Works
for Existing and Annex Building**

**Annex (3)
Nominated Subcontractors Scope**

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

**Shepherd Hotel Renovation
Package SH-06B and SH-06C
Nominated Sub-Contractors Scope
Annex (3)**

Package	Item Description (by Nominated Sub-Contractors)	
Package SH-06B	Guestroom Management System	Supply and Install (3rd Fix)
	Wiring Devices	Supply and Install (3rd Fix)
	Interior and Exterior Lighting Fixtures	Supply and Install (3rd Fix)
Package SH-06C	Wooden Doors	Supply and Install Doors / Hardware / Architrave
	Sanitary Ware, Plumbing Fixtures and Accessories	Supply and Install (3rd Fix)
	Marble Works	Supply and Install
	Fixed Furniture	Supply and Install (Incl. Hardware)

The 1st and 2nd Fix of the Guestrooms Management System will be executed by the Main Contractor (CCC) through Variation Order

SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed furniture Works
for Existing and Annex Building**

Annex (4) Permits

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

Date : 8 Apr 2025
Ref : LTR/SI/SH/CCC/2025/001
To : CCC Egypt for Construction
Attn. : Eng. Bahij Soukarieh Project Manager
Subject : Shepherd Hotel Renovation – Packages SH-06B and SH-06C
Buildings' Permits and Structure Safety Reports

Dear Sir,

Referring to the signed Letter of Award dated 23 Mar 2025 between Employer "Al Sharif for Hotels and Tourism (ASG)" and Contractor "CCC Egypt for Construction (CCC)" for execution of Packages SH-06B and SH-06C of "Shepherd Hotel",

And following the Kickoff Meeting held on 7 Apr 2025 on site, please find the following documents attached (soft / hardcopy) to this letter:

1. Existing Building

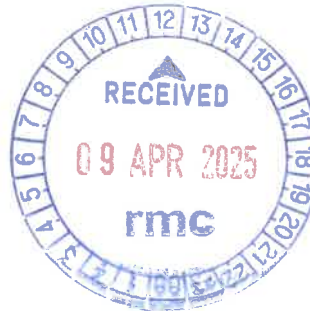
- Global Stability Report by (AACE – Structure Consultant) dated 20 Feb 2024
- Structure Safety Report by (ECO – Structure Supervision Consultant) dated 27 Feb 2024
- Existing Building Permit
- Outdoor Pool at 13th floor Permit
- Façade Permit

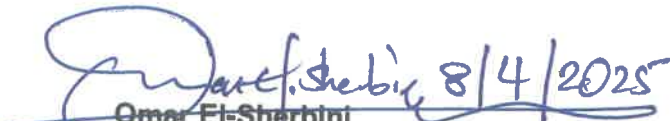
2. Annex Building

- Annex Building Permit

This is for your kind consideration.

Best Regards,




Omar El-Sherbini
Project Control Manager

إستشارى إدارة المشروعات والتشييد
HEXAGON
PROJECT & CONSTRUCTION MANAGEMENT
CONSULTANTS

CC:

Mr. Hany Rayan
Eng. Mahmoud Metwally
Eng. Mohamed Tawfik

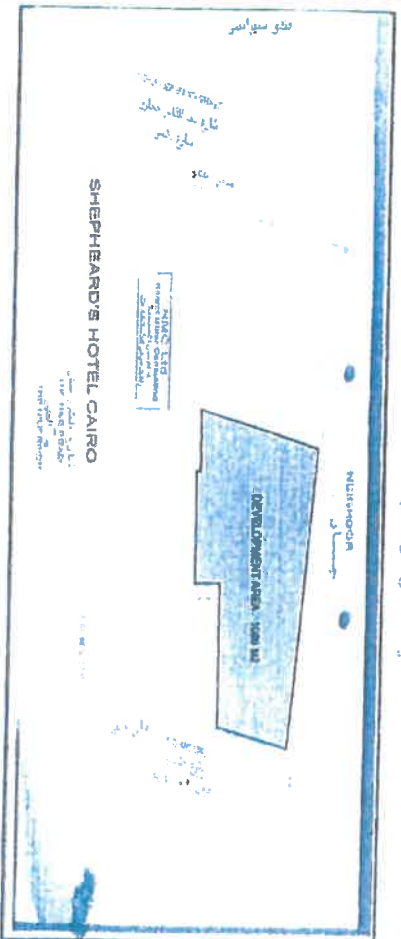
ASG
RMC
ECO

Received
9/4/2025

Engineering Consultations Office
"ECO"
Shepherd Hotel Project



مخبرية امحور - محتويات المستند وان اسم كبرياكي اسمو شح



الواجهة: طول الواجهة (م): ٢٩,٣٥

الواجهة: العرض: ٢٩,٣٥

الواجهة: العرض: ٢٩,٣٥

الواجهة: العرض: ٢٩,٣٥

الواجهة: العرض: ٢٩,٣٥

ولا يتم البدء في تنفيذ أعمال الترخيص إلا بعد أنظار الجهة الإدارية قبل التنفيذ وعدمه لا تقل عن اسبوعين مرفقا به عقد مقاوله متضمنا من الاتحاد المصري لمقاولي التشييد والبناء متى زادت قيمة الأعمال عن ٣٥٠٠٠٠ وعقد مقاوله من احد المقاولين متى قلت الأعمال عن ذلك. وشهادة اشراف على التنفيذ طبقا لتعليمات نقابة المهندسين.

يتم تقديم تقرير ربع سنوية عن سير العمل من المهندس المشرف وفي حالة وجود مخالفات بالمبنى يتم ازالها على نفقة المالك

مدة سريان الترخيص سنة واحدة من تاريخ الاصدار.

مدير منطقة الإسكندرية (هذا المستند لا يؤخذ فيه سند للملكية)

مدير منطقة الإسكندرية (هذا المستند لا يؤخذ فيه سند للملكية)

مدير منطقة الإسكندرية (هذا المستند لا يؤخذ فيه سند للملكية)

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مدير منطقة الإسكندرية (هذا المستند لا يؤخذ فيه سند للملكية)

تصريح البناء ترخيص

الهيئة الهندسية

مديرية الإسكندرية

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

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رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

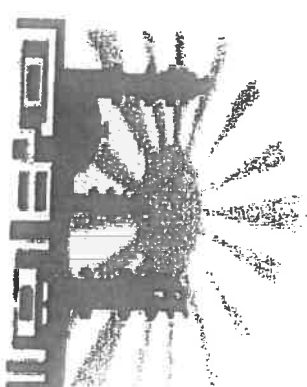
رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

رقم الترخيص: ٧٥٧٢٠٢٣٠١٠٠٠٠٨

نموذج إصدار ترخيص

حي غرب
الإدارة الهندسية



الإدارة العامة لترخيص البناء

ترخيص بناء رقم: ٧٥٧٢٠٢٣٠١٠٠٠٠٠٨ تاريخ الترخيص: ٢٠٢٣-١١-١٥

عدد الوحدات:

استكمال مبنى

نوع الترخيص:

رقم القطعة: محافظة القاهرة - حي غرب - جاردن سيتي - كورنيش النيل - قطعة - ١١٠٥

صاحب الترخيص: الشركة المصرية العامة للسياحة والفنادق (الجوهري)

الترخيص المبني	نوع الترخيص	رقم الترخيص	تاريخ الترخيص	مشمول الترخيص	ملاحظات
١	تجديد مبنى	*	٢٠١١-٠٩-٢٠	لا يخص للمالك والتقييم	٤٢٥٨
			٠٠:٠٠:٠٠	باصول تعليمات	

النسبة	المستقر	المستقر	تاريخ الترخيص	النسبة
١				

رقم الملف:-

المهندس المسؤول/ محمد حسام علي محمد

الأعمال المصرح بها:-

استكمال مباني فندق شيرك عبارة عن عدد أربعة بديرون + ارضي + اول + ثاني + ثالث + عدد ١٠ اوار مكررة + غرف سطح

تعليمات:-

- 1- قبل بدء اعمال الحفر يتم الالتزام بالاتي :
أ. الحصول على تصريح الحفر من الجهة المختصة.
ب. وضع لافتة يوضح عليها بيانات الموقع والأعمال المرخصة بوضوح.
- 2- الرجوع لجهة الاختصاص لتحديد الكميات الزائدة عن الرزم والأعمال المرخصة بوضوح.
- 3- يلتزم المهندس المشرف بعمل تقرير دوري عن سير العمل ثم تقديم شهادة صلاحية المبني للأعمال بعد الانتهاء من التنفيذ وتعقد من المهندس المشرف على التنفيذ أو المكتب الهندسي مع وضع صورة منها في مدخل العقار لمدة عام .
- 4- يلتزم المهندس المشرف أو المكتب الهندسي والمقاول بتأمين المباني المجاورة بما يضمن سلامتها وسلامة الأرواح والممتلكات والمرة أثناء التنفيذ .
- 5- مدة الترخيص عام واحد من تاريخ اعتناء الترخيص وفي حالة عدم البناء يحدد لمدة عام واحد ويكون الترخيص لاغى بعد ذلك.
- 6- يتم الالتزام بالتعليمات الخاصة بالتنفيذ طبقا لتعليمات السلطة المختصة.

ملحوظة عامة:-

يجب الالتزام بالمواد ٥٣ و ٥٤ و ٥٦ و ٥٧ من قانون ١٩٩ لسنة ٢٠٠٨ والمواد ٢٢٨ و ١٢٩ و ١٣٠ و ١٣١ و ١٣٢ من اللاحة التنفيذية للقانون.

جامع الكورنيش النيل
جامع عبدالقادر حمزة
جامع الشوك

2000

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(f) مجلس الشورى

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Abdullah 1999591

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تاریخ

٢٠٠

ولا يتم البدء في تنفيذ أعمال الترخيص إلا بعد إخطار الجهة الإدارية قبل التنفيذ بحدّة لا تقل عن أسبوعين مرقفاً به عقد مطابقة مستنداً من الاحتاد المصري لمقاولي التنفيذ و البناء متى زالت قيمة الأعمال عن ٣٥٠٠٠٠ وعقد مطابقة من أحد المقاولين متى كانت الأعمال عن ذلك. وشهادة الشرف على التنفيذ طبقاً لتعليمات نقابة المهنيين.

يتم تقديم تقارير ربع سنوية عن سير العمل من المهنيين المشرف وفي حالة وجود مخالقات يلتمس يتم ازالها على نفقة المالك.

مدة سريان الترخيص سنة واحدة من تاريخ الاصدار. (هذا المستند لا يوزع به عقد المالك)

مدة سريان الترخيص سنة واحدة من تاريخ الإصدار.

المفتي المسئول

卷五

احسان بن علی

A

Handwritten signature: *[Signature]*
Date: 19/06/2016

2/10/2014

مصر
مصر
مصر

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

•

فتح الترتيب:

Populism

VOVY.TL...
::J.E.B.

رقم الحساب: ٧١٠٠٧١١٩٧

سورج اتر گھیں: رحمتہ تعظیم بپاہ مہدی

بیتک الموضع

محافظة القاهرة - حي غرب - جولي ليد سيتي - كورنيش النيل - عطار - النيل - شبراخيت -
 قلم القصبه:

المسألة الثانية

!

مساحة القطعة المربعة:

برقيات صاحب الترجمة

الشركة المصرية العامة للسياسة و المظلي (ايجو)
الاسم:

٥٦

مجلس

بِاتِلَاتِ الْمُهَنْدِسِ / الْمُكْتَبِ الْهِنْدِيِّ

علي عبد الرحمن يوسف:

1/345
مجله علمی

二、

٢١٢٢. في الألفاظ

五

ابصرح للطالب بعمل تعديلات مصدريه و انشيتيه بالاداء من الارضى الى الثالث حضر عليها
للاسماء الهنديه المتعدده طيفاً للاختراعات البشريه و التخطيطيه فقط و المرقه بالترخيص و
على مسئوليها الدكتور مهنس على عبد الرحمن يوسف مقدم طلب الترخيص و تقرير السلامه
الإضافيه قيد رقم ٢/٢٠٣ استشارى رقم ١/٤٧٣ بناء على موافقه الشغل القانونيه بالخاص
رقم: ٧٠ لسنة ٧٠٢٤ و موافقه الحسين بالشهاده رقم ٨٠٦ وترخيص نقل المحطات رقم ٤
لسنة: ٧٠٢٤ فى حدود تكرار ١٤٤٠ جيجا فقط للأحملة و اريعه حضر الف و اربعمائه)

الرسم المسودة (المبلغ بالجنيه المصري)

إجمالي الرسوم المستددة - ٣٨٤٢٠٦٤ جنيهها مصريا فقط - ثلاثة آلاف و مئتان و اربعون جنيه ٦٤ قرشا برقم إيصال ٥٥٤ وتاريخ السداد ٢٤/١٠/٢٠٢٤

١٠١١٨٦

قيمة الرسوم	حسباً رقم الترخيص
تاريخ الترخيص	رقم الترخيص
تاريخ الشهادة	رقم الترخيص
رقم الترخيص	رقم الترخيص
التوقيع	رقم الترخيص

٢٣١٩
٢٠٢١/٢/٢٧

تقرير سلامة انشائية

بمعرفة انا المهندس الاستشاري / على عبد الرحمن يوسف

عضو نقابة المهندسين: ٢/٦٤٣ سجل هندسي رقم: ١/٤٧٣ / الشعبة : مدني

قمنا بالمعاينة على الطبيعة للمبنى التالي بياناته:

المبنى القائم: فندق شبرد - جاردن سيتي

بناء على طلب السادة

المالك/ الشركة المصرية العامة للسياحة والفنادق

الموقع / القطعة ١١٠٥ كورنيش النيل - جاردن سيتي (فندق شبرد) - شياخة مقر الدوبارة

وصف المبنى/ بدروم ودور أرضي وعدد ١١ دور علوي وميزانين وثلاث أدوار تالية
مختلفة المسطح

النشاط : مبنى فندقى

الغرض من التقرير: السلامة الانشائية للأساسات والهيكل الخرساني نتيجة تنفيذ تعديلات
معمارية وانشائية

الراى الفنى:

بعد معاينة المبنى ومراجعة الأمان الانشائي للعناصر الانشائية شاملة الأساسات والهيكل
الخرساني تبين توافق أمان انشائي كافى بعد تنفيذ التعديلات المعمارية والانشائية موضوع
الترخيص , حيث أن عناصر المبنى تتحمل بأمان كافى تأثير التعديلات المقدم بشأنها طلب
الترخيص .

مهندس استشاري /

قيد رقم / ٢/٦٤٣

استشاري رقم / ١/٤٧٣

المهندس الاستشاري
أ.د على عبد الرحمن
رقم الترخيص: ٢/٦٤٣ رقم استشاري: ١/٤٧٣



Amr Abdelrahman Consultant Engineers

Report on
Global Structural Stability
of
SHEPHEARD'S HOTEL BUILDING
CORNICHE EL-NILE, CAIRO, EGYPT

Submitted to



HEXAGON PROJECT & CONSTRUCTION
MANAGEMENT CONSULTANT

&



HASSAN ALLAM
— CONSTRUCTION —

HASSAN ALLAM CONSTRUCTION

BY



AMR ABDELRAHMAN CONSULTING ENGINEER

February-2024

AACE





Report on
Global Structural Stability
of
SHEPHEARD'S HOTEL BUILDING
CORNICHE EL-NILE, CAIRO, EGYPT

1. Introduction

The purpose of this technical report is to present the preliminary structural evaluation of Shepherd's Hotel Building at Corniche El Nile, Cairo, Egypt as a part of the renovation project for the hotel. The report addresses the global stability of the structure and does not deal with the structural safety of each member, which shall be addressed in a later report.



Figure 1 View of the hotel building

2. Building Description

The Shepherd's Hotel Building was constructed in 1957 at Corniche El-Nile, Cairo, Egypt, as shown in figure 1. The building has footprint of 2400 m² and 60 m height and separated into two parts by expansion joint. The building consists of basement, ground and 14 floors in addition to upper roof floor. The structural system of the building consists of reinforced concrete slabs/beams with variable spans, which are supported on reinforced concrete columns. The vertical elements are supported on deep foundations system which is consist of piles and pile caps.





2.1. Building Layout

Reference to figure (2), The building under consideration is the existing building shown in red color with a footprint of 2400 m², while an annex building is still under construction and shown in green color. The existing building is included in the scope of work in this report, while the annex building is out of scope.

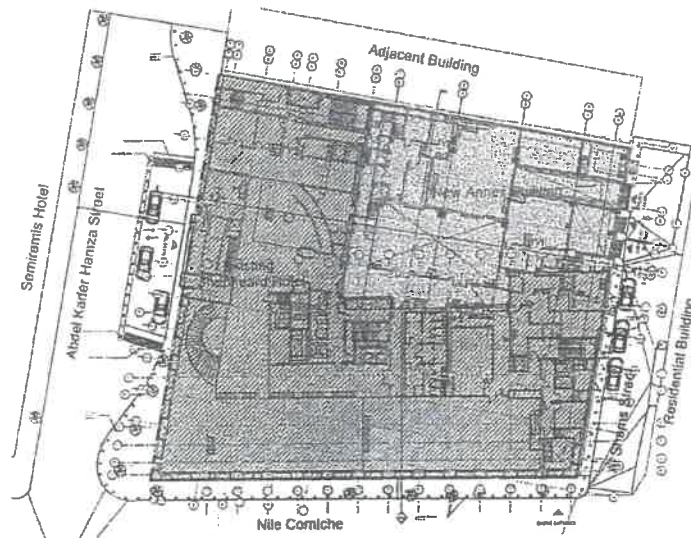


Figure 2 Layout for the existing building

2.2. Column's distribution

Reference to figure (3) which shows the columns distribution from foundation to level L3, the spacing between columns is varying from 3.0 m to 7.0 m in both directions. The spacing between columns from level L3 to the upper roof are varying from 3.0 m to 5.0m, as shown in figure (4), which means that some of the columns in the upper floors are planted on a transfer .

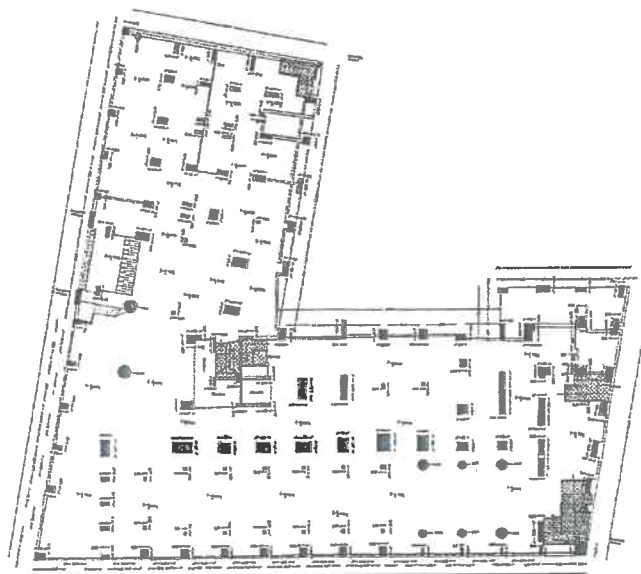


Figure 3 Column's layout from foundation to L3



Figure 4 Column's layout at level L3

2.3. Building Elevation

Reference to figure (5) which shows the front view of the building, the building consists of basement, ground, 14 floors and upper roof floor with total height about 60 m while the floors height is varying from 3.0 m to 6.0 m.

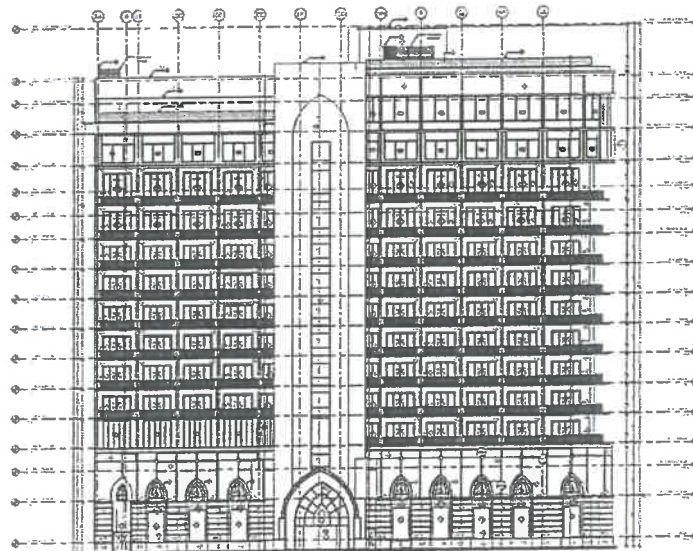


Figure 5 Elevation for the front view of the existing building

2.4. Floors statical systems

Reference to figures (6, 7 & 8), The common statical system along the floors is reinforced concrete slab/beam system, where the f slabs' thickness is varying from 12 to 50 cm. The beams' depth is varying from 30 to 190 cm.

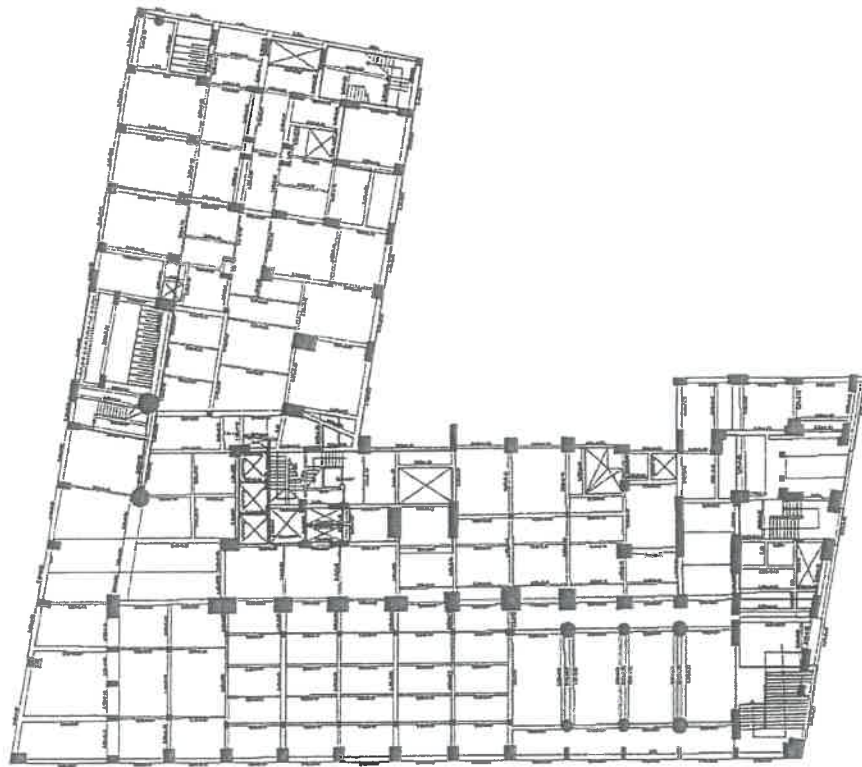


Figure 6 Framing layout at ground level

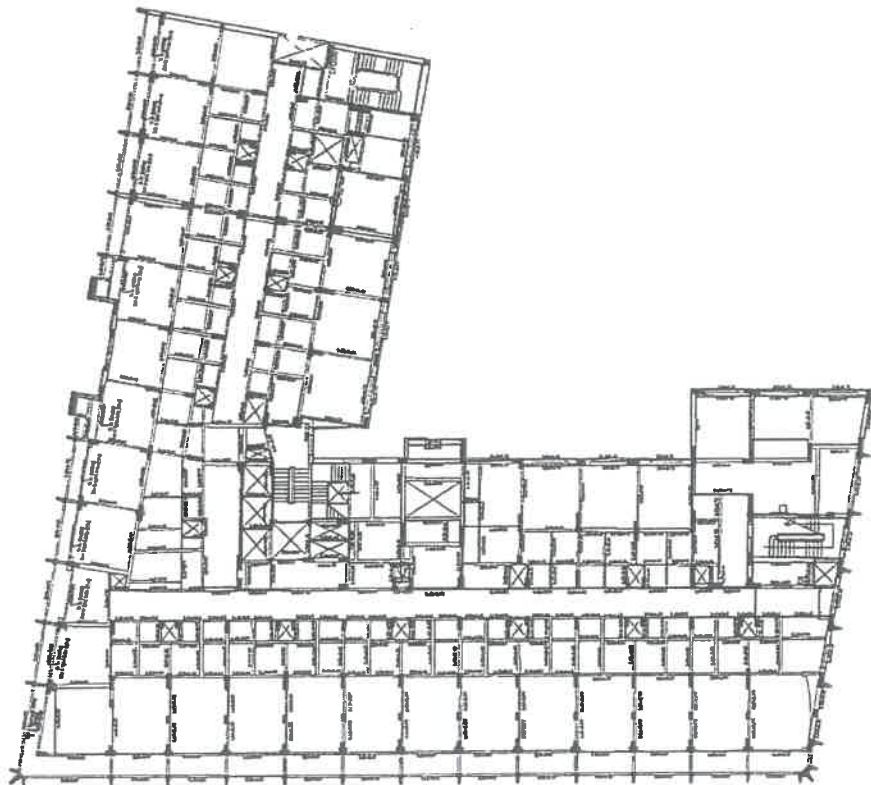


Figure 7 Framing layout at 5th level

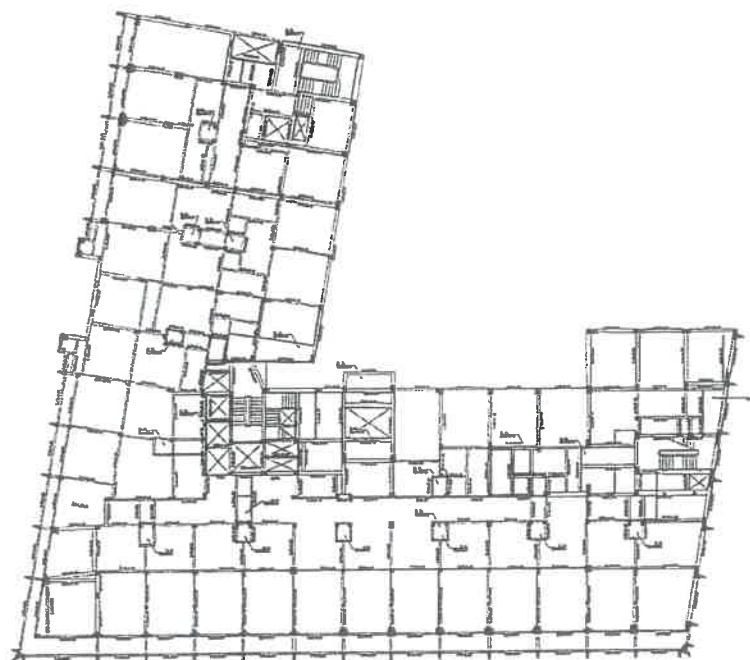


Figure 8 Framing layout at 12th level

3. Available Documents

- ETABS Model file for the Existing Building of "Shepherd Hotel", which is prepared by Structure Consultant (ECO).
- Demolishing and Rehabilitation Works – Issued for Construction Package dated Nov 2023 by Structure Consultant (ECO).
- Architecture Drawings – Issued for Construction dated Nov 2023 by Consultant (RMC).
- Quality Control tests for the previous rehabilitation works back in 2016.
- No data is given with reference to the foundations and/or soil report recommendations.

4. Applicable codes, Standards and Publications

Ultimate limit state design method is employed for the design check of all structural elements. The structure is designed to support, with the required factor of safety, all possible loads induced on the building during its life-span within the acceptable serviceability limits (deformations, deflection and cracking). The substructure is designed to transmit all loads imposed by the superstructure to the soil. Summary of the used codes are as follows:

- Egyptian Code for Calculation of Loads on Buildings (201/2012).
- Egyptian Code for Design and Construction of Concrete Structures (203/2020).

5. Material Specifications

The only available data on the material properties are those existing on the structural drawings and no recent data on the existing properties are available.



5.1. Concrete compressive strength:

In order to identify the actual compressive strength for concrete, core test should be extracted from the existing concrete and tested to evaluate the strength of the vertical and horizontal structural elements.

5.2. Steel

In order to identify the actual mechanical and chemical properties of the existing steel bars, samples from the steel bars should also be tested.

6. Loads

The concrete structure is designed to support, with the required factor of safety, all loads combination that might be experienced during the design life of structure within the acceptable serviceability limit (deformations and deflection). These loads are as specified in the Egyptian Code for Calculation of Loads on Buildings (201-2012).

6.1. Dead Loads

Dead loads consist of the weights of the structure and all permanent equipment including wall panels, partitions, roof deck, ducting, piping, drains, electrical trays, false ceiling and AC ducts.

- Unit weight of reinforced concrete = 25.00 kN/m³
- Partitions = 5.00 kN/m²
- Floor cover will be following the received ETABS model prepared by (ECO) until receiving interior design drawings (Drawing with 'ID' discipline).

6.2. Live Load

- Guest rooms = 2.50 kN/m²
- Public rooms / restaurant / corridors / stairs = 4.00 kN/m²

6.3. Seismic Loads

- Response modification factor (R) = 7
- Seismic Zone = 3
- Spectrum Type = 1.0
- Subsoil class = C
- Soil Factor = 1.80
- Damping Factor = 0.05

Function Graph

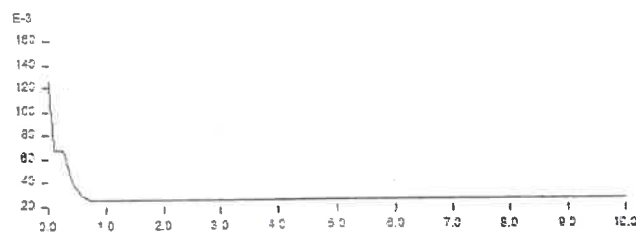


Figure 9 Response spectrum curve



7. Load Combinations

Loads acting on the structures considered are dead, live, wind, earthquake and thermal restraints. They are considered to be acting in various combinations for design purposes. The load combination, which causes the most unfavorable design, shall govern. The following load combinations for design of concrete and steel structures have been used according to ECP203-2020.

8. Site Visit

A visit was paid to the site on January 2024, renovation of the building was under progress. According to the structural drawings and the visual inspection, many dropped concrete beams exist on all the floors. It should be highlighted that the existing concrete beams provide structural stability and stiffness to resist both the vertical and lateral loads. It was also observed in the site visit that the concrete color is gray which may give the indication of the good concrete quality. In addition, very minimal steel corrosion exists despite the fact that the building exists from 1957.

9. Conclusions

Based on the preliminary evaluation of the documents related to the concerned building of Sheppard's Hotel at Corniche El Nile, Cairo, Egypt and the site visit, the following is concluded:

1. The global stability of the structure exists to resist both gravity and lateral loads.
2. Structural safety of each member in the building should be addressed to ensure that all the elements can withstand the induced loads in the light of the current design Egyptian Codes. However, rehabilitation works may continue as per strengthening design details prepared by (ECO) until detailed calculations of the structural safety are provided.
3. In order to perform a detailed structural assessment for the building, the following documents are required:
 - a. Foundation design and geotechnical report of the existing building.
 - b. Original structural package, (As-Built) of the building.
 - c. The final architecture design drawings as per the new requirements given by the interior design consultant.





التوصيات:

بناءً على التقييم المبدئي للمستندات الخاصة بالمبنى القائم لمبنى فندق شبرد الواقع على كورنيش النيل والتي تم استلامها بالإضافة للزيارة التي تمت للموقع، فإنه يوصى بالآتي:

1. النظام الإنشائي للمبنى مَتَزِن تحت تأثير الأحمال الرأسية و الأفقية.
2. يجب استكمال دراسة الأمان لكل العناصر الإنشائية للتأكد من قدرتها على مقاومة الأحمال الواقعة عليها وتحقيق اشتراطات الكود المصرى لتصميم وتنفيذ المنشآت الخرسانية، كما يمكن إستكمال أعمال التدعيم والترميم بناءً على التفاصيل الإنشائية التي تم إعدادها بواسطة مكتب (ECO) لحين الإنتهاء من دراسة كل العناصر الإنشائية.
3. يجب توفير المستندات الآتية من أجل إتمام دراسة العناصر الإنشائية للمبنى:
 - تقرير التربة الخاص بالمنشأ بالإضافة للتصميم الإنشائي الخاص بالأساسات.
 - اللوحات الإنشائية الخاصة بالمبنى قبل التدعيم.
 - اللوحات المعمارية المعدلة الخاصة بالمبنى.

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SHEPHEARD HOTEL RENOVATION

**Package SH-06 (B) and (C)
Architecture, MEP, Finishing and Fixed furniture Works
for Existing and Annex Building**

**Annex (5)
Site Facilities**

**Employer
Al Sharif for Hotels and Tourism**

**Contractor
CCC Egypt for Construction (CCC Egypt)**

Date: September 2025

**Shepherd Hotel Renovation
Site Offices Facilities
Annex (5)**

No.	Description	Unit	Investor Representative (ASG)	Engineer (Hexagon)	Supervision Consultants (ECO / RMC / GA)	Qty
1.0	Site Offices Furnishing					
1.1	Fully Finished site offices rooms	No.	2	6	11	19
1.2	Office desks with one drawer and one arm chair	No	3	7	16	26
1.3	Office Chairs	No	6	14	32	52
1.4	Air Condition split unit	No	2	6	11	19
1.5	large Closets with adjustable shelves and lockable door for achiving documents	No	1	30	6	37
1.6	Meeting room (accomdates 30 person) - including meeting table / chairs / AC / screen projector	No.	1			1
1.7	Documents archiving room	No.	1			1
1.8	Sample room with metal shelves	No.	1			1
2.0	Site Offices Equipment					
2.1	Multifunction workcenter (Printer (colors) / Photocopy Machine/ scanner) A4 and A3	No	4			4
2.2	Laptop (with wireless mouse and laptop bag)	No	3			3
2.3	Desktop Computer	No	8			8
2.4	LAN Connection network for computer devices - General Server and Internet	Required for (26) Computer Devices				
2.5	Softwares (AutoCad / Adobe PDF / Microsoft Office)					
3.0	Wash Rooms					
3.1	Fully finished wash rooms (including toilet, hand basin, and all required water supply and drainage networks)	No	8			8
4.0	Kitchenette					
4.1	Fully furnished kitchenette with all required facilities (e.g Fridge, Refrigerator, Kettle, cabinet, plates, cups,)	No.	1			1
5.0	Safety Gear					
5.1	Helmet - Vest - Shoes - Glasses	No	3	7	16	26
6.0	Monthly Consumptions					
6.1	All required stationary tools (e.g. paper, pens, pencils, flash meomery,)					
6.2	All required kitchenette and cleaning consumptions (e.g water,tea. Coffee, soap, tissues,)					
6.3	Office boys (kitchenette serving and cleaning) / documents archiving helpers	No.	6			
6.4	Mobile Sim Cards (including calls and internet)	No.	3	7	16	26
6.5	Monthly Parking membership (Omar Makram Parking)	No	TBD			